

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Date Filed:

-----X
ORLANDO MCKENZIE and TIFFANY SICARD,

Index No.:

Plaintiffs,

SUMMONS

-against-

Plaintiffs designate Queens
County as the place of trial

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER RYAN
O'CONNOR (Shield No. 362) and POLICE OFFICERS
JANE and JOHN DOES INDIVIDUALLY and in their
Official Capacity (the names JANE and JOHN DOES
being fictitious, as the true names are presently unknown),

The basis of venue
Place of Occurrence

Defendants.

-----X
To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Mineola, New York
June 28, 2019



JARAD L. SIEGEL, ESQ.
Monteleone & Siegel, PLLC
Attorneys for Plaintiffs
ORLANDO MCKENZIE and TIFFANY SICARD
1539 Franklin Avenue, Suite 300
Mineola, New York 11501
(516) 746-0002

Defendants' Addresses:

THE CITY OF NEW YORK
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

POLICE OFFICER RYAN O'CONNOR (Shield No. 362)
113th Precinct
167-02 Baisley Boulevard
Jamaica, New York 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ORLANDO MCKENZIE and TIFFANY SICARD,

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER RYAN
O'CONNOR (Shield No. 362) and POLICE OFFICERS
JANE and JOHN DOES INDIVIDUALLY and in their
Official Capacity (the names JANE and JOHN DOES
being fictitious, as the true names are presently unknown),

Defendants.

-----X
Plaintiffs, ORLANDO MCKENZIE and TIFFANY SICARD, by their attorneys
MONTELEONE & SIEGEL, PLLC, complaining of the Defendants, THE CITY OF NEW
YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER RYAN
O'CONNOR (Shield No. 362) and POLICE OFFICERS JANE and JOHN DOES
INDIVIDUALLY and in their Official Capacity (the names JANE and JOHN DOES being
fictitious, as the true names are presently unknown), upon information and belief, respectfully
allege as follows:

1. That at all times hereinafter mentioned, plaintiffs, ORLANDO MCKENZIE and TIFFANY SICARD, were and still are residents of the County of Queens and State of New York.
2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

4. That prior hereto on August 29, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when, and place where the injuries and damages were sustained together with plaintiffs' demand for adjustment or payment thereof, and that thereafter, defendant, THE CITY OF NEW YORK, refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on November 27, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiff was held.

6. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than (30) days have elapsed since the presentation of such claim.

7. This action was timely commenced within the statutory timeframe.

8. Plaintiffs have complied with all conditions precedent to maintaining the instant action.

9. This action falls within one or more exceptions as outlined in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF ORLANDO MCKENZIE**

10. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER RYAN O'CONNOR (Shield No. 362) as an agent, servant and/or employee.

11. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK employed defendants, JANE DOES-Police Officers, as yet unidentified, as agents, servants and/or employees.

12. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK employed defendants, JOHN DOES-Police Officers, as yet unidentified, as agents, servants and/or employees.

13. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ORLANDO MCKENZIE, was lawfully present at or near 116-40 140th Street, Jamaica, New York 11436 in the County of Queens and State of New York.

14. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ORLANDO MCKENZIE, was assaulted, battered and tasered by defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362), who was acting within the scope of his employment with the defendant, THE CITY OF NEW YORK, at or near the aforesaid premises.

15. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ORLANDO MCKENZIE, was assaulted, battered and tasered by defendants, JANE DOES-Police Officers, as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at or near the aforesaid premises.

16. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the Plaintiff, ORLANDO MCKENZIE, was assaulted, battered and tasered by defendants, JOHN DOES-Police Officers, as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at or near the aforesaid premises.

17. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally, and willfully.

18. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362), who upon information and belief committed the aforementioned assault and battery upon the plaintiff, ORLANDO MCKENZIE, was acting within the scope of his employment with the defendant, THE CITY OF NEW YORK.

19. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, ORLANDO MCKENZIE, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

20. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, ORLANDO MCKENZIE, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

21. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

22. By reason of said assault and battery, the plaintiff, ORLANDO MCKENZIE, was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

23. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ORLANDO MCKENZIE**

24. The plaintiffs repeat and reallege each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants and employees and were negligent in the hiring, training and retention of the defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362).

26. That the defendant, THE CITY OF NEW YORK, upon information and belief had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362), and continued to employ him and allow him to be in contact with the public at large.

27. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ORLANDO MCKENZIE**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants and

employees and were negligent in the hiring, training and retention of the defendants, JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, ORLANDO MCKENZIE.

30. That the defendant, THE CITY OF NEW YORK, upon information and belief had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendant, JANE DOES-Police Officers, as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

31. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ORLANDO MCKENZIE**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants and employees and were negligent in the hiring, training and retention of the defendants, JOHN DOES-Police Officers, as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, ORLANDO MCKENZIE.

34. That the defendant, THE CITY OF NEW YORK, upon information and belief had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, JOHN DOES-Police Officers, as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

35. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF ORLANDO MCKENZIE**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362), was working within the scope of his employment and authority with the defendant, THE CITY OF NEW YORK, when he arrested and confined the plaintiff, ORLANDO MCKENZIE.

38. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

39. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF ORLANDO MCKENZIE**

40. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "39" inclusive with the same force and effect as if more fully set forth at length herein.

41. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JANE DOES-Police Officers, as yet unidentified, were acting within the

scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, ORLANDO MCKENZIE.

42. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

43. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF ORLANDO MCKENZIE**

44. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "43" inclusive with the same force and effect as if more fully set forth at length herein.

45. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES-Police Officers, as yet unidentified, were acting within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, ORLANDO MCKENZIE.

46. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

47. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ORLANDO MCKENZIE**

48. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through 47" inclusive with the same force and effect as if more fully set forth at length herein.

49. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362), was acting within the scope of his employment when he, without justification and without probable cause, imprisoned the plaintiff.

50. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362), while acting within the scope of his employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

51. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ORLANDO MCKENZIE**

52. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "51" inclusive with the same force and effect as if more fully set forth at length herein.

53. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JANE DOES-Police Officers, as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

54. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JANE DOES-Police Officers, as yet unidentified, while acting with the scope of their employment intentionally confined the plaintiff against his will and said confinement was not privileged.

55. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ORLANDO MCKENZIE**

56. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "55" inclusive with the same force and effect as if more fully set forth at length herein.

57. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES-Police Officers, as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

58. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES-Police Officers, as yet unidentified, while acting with the scope of their employment intentionally confined the plaintiff against his will and said confinement was not privileged.

59. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF ORLANDO MCKENZIE**

60. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "59" inclusive with the same force and effect as if more fully set forth at length herein.

61. That the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER RYAN O'CONNOR (Shield No. 362), upon information and belief acted intentionally, recklessly and with utter disregard to the consequences of his actions and caused severe emotional distress to the plaintiff, ORLANDO MCKENZIE, through their actions.

62. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ORLANDO MCKENZIE.

63. That as a result of said intentional and negligent acts, the plaintiff, ORLANDO MCKENZIE, became sick, sore, lame and disabled, and received several serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

64. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR AN TWELFTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLECTION OF
EMOTIONAL DISTRESS ON BEHALF OF ORLANDO MCKENZIE**

65. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "64" inclusive with the same force and effect as if more fully set forth at length herein.

66. That the defendants, THE CITY OF NEW YORK, including but not limited to

JANE DOES-Police Officers as yet unidentified, upon information and belief acted intentionally, recklessly and with utter disregard to the consequences, of their actions and caused severe emotional distress to the plaintiff, ORLANDO MCKENZIE, through their actions.

67. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ORLANDO MCKENZIE.

68. That as a result of said intentional and negligent acts, the plaintiff, ORLANDO MCKENZIE, became sick, sore, lame and disabled, received several and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

69. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF ORLANDO MCKENZIE**

70. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "69" inclusive with the same force and effect as if more fully set forth at length herein.

71. That the defendants, THE CITY OF NEW YORK, including but not limited to JOHN DOES-Police Officers, as yet unidentified, upon information and belief acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff, ORLANDO MCKENZIE, through their actions.

72. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ORLANDO MCKENZIE.

73. That as a result of said intentional and negligent acts, the plaintiff, ORLANDO MCKENZIE, became sick, sore, lame and disabled, received several and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

74. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF ORLANDO MCKENZIE**

75. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "74" inclusive with the same force and effect as if more fully set forth at length herein.

76. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief defendant, POLICE OFFICER RYAN O'CONNOR (Shield No. 362), within the scope of his employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

77. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, POLICE OFFICER, RYAN O'CONNOR (Shield No. 362), was acting within the scope of his employment, maliciously prosecuted the plaintiff.

78. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

79. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF ORLANDO MCKENZIE**

80. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "79" inclusive with the same force and effect as if more fully set forth at length herein.

81. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief defendants, JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

82. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JANE DOES-Police Officers, as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

83. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, ORLANDO MCKENZIE, sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities, and suffered emotional and physical distress and injury.

84. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF ORLANDO MCKENZIE**

85. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "84" inclusive with the same force and effect as if more fully set forth at length herein.

86. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief defendants, JOHN DOES-Police Officers, as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

87. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES-Police Officers, as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

88. That on July 2, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, ORLANDO MCKENZIE, sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities, and suffered emotional and physical distress and injury.

89. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ORLANDO MCKENZIE**

90. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “89” inclusive with the same force and effect as if more fully set forth at length herein.

91. That the defendants, THE CITY OF NEW YORK, upon information and belief, including, but not limited to, POLICE OFFICER RYAN O’CONNOR (Shield No. 362), was acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested, and falsely imprisoned the plaintiff, ORLANDO MCKENZIE, in violation of U.S.C.A. Section 1983 as well as other applicable State and Federal laws.

92. That the deprivation of the defendant, THE CITY OF NEW YORK, including, but not limited to, Defendants, JANE and JOHN DOES-Police Officers, as yet unidentified, were acting under the color of law and within the scope of their authority, deprived plaintiff, ORLANDO MCKENZIE, of liberty without due process and without reasonable cause in violation of U.S.C.A. Section 1983 as well as other applicable State and Federal laws.

86. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

93. That the assault, battery, tasing, false arrest, and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

94. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendant, THE CITY OF NEW YORK, including, but not limited to, POLICE OFFICER, RYAN O'CONNOR (Shield No. 362), and JOHN and JANE DOES- Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendant, THE CITY OF NEW YORK.

95. The defendants' actions were not privileged or immune.

96. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER RYAN O'CONNOR (Shield No. 362), JANE DOES-Police Officers, yet unidentified, and JOHN DOES-Police Officers yet unidentified were not acting with immunity when they deprived plaintiff, ORLANDO MCKENZIE, of his civil rights.

97. By reason of the foregoing, the plaintiff, ORLANDO MCKENZIE, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION FOR
LOSS OF SERVICES ON BEHALF OF PLAINTIFF, TIFFANY SICARD**

98. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs of this complaint designated “1” through “97”, hereof, as though fully set forth herein, at length.

99. At all times herein mentioned, this plaintiff, TIFFANY SICARD, was and still is the wife of plaintiff, ORLANDO MCKENZIE, and they reside together in the same household, and this plaintiff has been and still is contributing to the support of plaintiff, ORLANDO MCKENZIE.

100. Solely as the consequence of the negligence of defendants as aforesaid, plaintiff TIFFANY SICARD, was compelled to seek medical aid and assistance for her husband, plaintiff ORLANDO MCKENZIE, expending monies or obligating herself in connection therewith and she may, in the future, be so compelled, and plaintiff TIFFANY SICARD, has been deprived and may, in the future, be deprived, of the company, comfort, society, and companionship of her husband, plaintiff ORLANDO MCKENZIE, all to her damage in an amount exceeding the jurisdictional limits of the lower courts.

101. By reason of the foregoing, the plaintiff, TIFFANY SICARD, sustained damages in an amount exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A NINETEENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF PLAINTIFFS, ORLANDO MCKENZIE AND
TIFFANY SICARD**

102. The plaintiffs ORLANDO MCKENZIE and TIFFANY SICARD repeat and reallege each and every allegation set forth above numbered “1” through “101” inclusive with the same force and effect as if more fully set forth at length herein.

103. The actions of the defendants herein-above alleged were malicious, willful and grossly negligent.

104. That the defendant, THE CITY OF NEW YORK, upon information and belief, authorized, permitted, and ratified the unlawful and negligent acts of their agents, servants and/or employees including but not limited to POLICE OFFICER RYAN O'CONNOR(Shield No. 362), JANE DOES-Police Officers, as yet unidentified, and JOHN DOES-Police Officers as yet unidentified herein above alleged.

105. By reason of the foregoing, the plaintiffs, ORLANDO MCKENZIE and TIFFANY SICARD, sustained punitive damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiffs, ORLANDO MCKENZIE and TIFFANY SICARD, demand judgment, in the amount exceeding the jurisdictional limits of all lower Courts on all causes of action, inclusive of punitive damages; together with attorneys' fees, and the costs and disbursements of this action.

Dated: Mineola, New York
June 28, 2019

Yours, etc.,



JARAD L. SIEGEL, ESQ.
MONTELEONE & SIEGEL, PLLC
Attorneys for the Plaintiffs
ORLANDO MCKENZIE and TIFFANY SICARD
1539 Franklin Avenue
Suite 300
Mineola, New York 11501
516-746-0002

ATTORNEY VERIFICATION

The undersigned, an attorney admitted to practice before the Court of the State of New York, hereby affirms as true under the penalties of perjury that he is one of the attorneys of record for the plaintiffs in the within action; that affirmant has read the foregoing Summons and Verified Complaint and knows the contents thereof, that the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief, and that to those matters, affirmant believes it to be true. Affirmant further states that the reason this affirmation is not made by the plaintiffs is that said plaintiffs are not in the county where affirmant has his office.

Dated: June 28, 2019
Mineola, New York



JARAD L. SIEGEL, ESQ.

Index No.:

Year

ORLANDO MCKENZIE and TIFFANY SICARD,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, et al.,

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

MONTELEONE & SIEGEL, PLLC.

Attorneys for Plaintiff

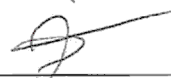
1539 Franklin Avenue, Suite 300

Mineola, New York 11501

(516) 746-0002

To

Signature (Rule 130-1.1-a)



Jarad L. Siegel, Esq.

Attorney(s) for

Service of a copy of the within

is hereby admitted

Dated: June 28, 2019

Attorney(s) for Plaintiffs

Please take notice

☐ Notice of Entry

that the within is a (certified) true copy of an Order duly entered in the office of the clerk of the within named court on _____.

☐ Notice of Settlement

that an order of Settlement of which the within is a true copy will be presented for settlement to the Hon. _____ one of the judges of the within named court at _____ on _____.

Dated: June 28, 2019

Yours, etc.

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